

# CONTENT CREATOR AGREEMENT

KESHAH, Inc. · Paid Creator Internship Program

This Content Creator Agreement (the “**Agreement**”) is entered into as of \_\_\_\_\_, 20\_\_\_\_ (the “**Effective Date**”) by and between KESHAH, Inc., a Delaware corporation (“**KESHAH**” or the “**Company**”), and \_\_\_\_\_, an individual residing at \_\_\_\_\_ (“**Creator**”). KESHAH and Creator are each a “Party” and together the “Parties.”

## 1. Background

KESHAH operates a drug-free hair loss app that helps users release scalp tension and restore blood flow to the scalp. Through its Paid Creator Internship Program (the “**Program**”), KESHAH engages college students to produce short-form educational content about hair loss and to promote the KESHAH app on social media. “Internship” is the name of the Program only; Creator provides services as an independent contractor as described in Section 9. Creator wishes to provide those services on the terms below.

## 2. Services

**2.1 Deliverables.** Creator will produce and deliver to KESHAH four (4) original short-form videos per business day, Monday through Friday, excluding U.S. federal holidays (the “**Videos**”). Each Video will be approximately 60 seconds in length, filmed in a talking-head style, and require minimal editing.

**2.2 Reference material.** KESHAH will provide Creator with reference videos, scripts, hooks, and talking points (“**Reference Material**”). Creator will base each Video on the Reference Material and will follow KESHAH’s messaging guidelines, including any restrictions on health or medical claims. Creator may adapt the delivery to Creator’s own voice and style but will not alter the core message, the protocol described, or any call to action without KESHAH’s written approval.

**2.3 Delivery and approval.** Creator will upload Videos to the shared folder or platform designated by KESHAH by 9:00 PM ET each business day. KESHAH may request reasonable re-takes of any Video that does not follow the Reference Material or these guidelines, and Creator will deliver the corrected Video within one (1) business day.

**2.4 Dedicated accounts.** KESHAH will create and own new TikTok and Instagram accounts dedicated to Creator’s Videos (the “**Accounts**”). KESHAH controls the Accounts, their credentials, and all posting decisions, and will post each Video to both TikTok and Instagram. Creator will not be required to post any Video to Creator’s personal or pre-existing social media profiles, and nothing in this Agreement grants KESHAH any rights in those profiles.

**2.5 Content standards.** Creator will not include in any Video content that is defamatory, obscene, infringing, or that violates the terms of service of TikTok or Instagram. Creator will not make claims that KESHAH cures, treats, or prevents any medical condition beyond the messaging KESHAH provides.

**2.6 Training.** KESHAH will provide Creator with onboarding and training materials on short-form content, including hooks, scripting, delivery, and basic editing in the TikTok app. Training is provided to support the Services and does not change Creator’s status as an independent contractor.

### 3. Compensation

KESHAH will pay Creator as follows:

| Item                      | Amount / Terms                                                                                                                                  |
|---------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Trial period</b>       | First two (2) weeks: flat fee of \$200 USD (10 business days, 4 videos per day)                                                                 |
| <b>Monthly retainer</b>   | \$400 USD per calendar month, beginning after the Trial Period                                                                                  |
| <b>Deliverable volume</b> | 4 videos per business day (Monday–Friday), approx. 60 seconds each                                                                              |
| <b>Performance bonus</b>  | \$15 USD per Qualifying Video per platform. A video that crosses 100,000 views on both TikTok and Instagram earns \$30.                         |
| <b>View threshold</b>     | 100,000 views on a single platform, measured 30 days after the video is first posted                                                            |
| <b>Payment timing</b>     | Trial fee paid within 7 days after the Trial Period ends; retainer and bonuses paid together within 7 days after the end of each calendar month |

**3.1 Trial Period.** The first two (2) weeks of the Term (ten (10) business days) are a trial period (the “**Trial Period**”). During the Trial Period Creator will deliver Videos at the same volume and standard described in Section 2, and KESHAH will pay Creator a flat fee of \$200 USD for the Trial Period in place of the monthly retainer. Performance bonuses under Section 3.2 apply to Videos delivered during the Trial Period. At the end of the Trial Period, either Party may end this Agreement on written notice with no further obligation other than payment for the Trial Period; otherwise the Agreement continues and the monthly retainer begins on the first business day after the Trial Period. If the retainer begins mid-month, that month is prorated by business day.

**3.2 Qualifying Videos.** A “**Qualifying Video**” is a Video delivered under this Agreement that reaches at least 100,000 views on a single platform (TikTok or Instagram) within 30 days of being first posted, as shown in that platform’s native analytics. Views are counted separately per platform; a Video that qualifies on both platforms earns the bonus twice. Views obtained through paid promotion, bots, or artificial inflation do not count.

**3.3 Proration.** The Trial Period fee and monthly retainer assume delivery of all scheduled Videos. If Creator delivers fewer than the scheduled number of Videos in a month without KESHAH’s prior written approval, KESHAH may prorate the applicable fee based on the number of Videos actually delivered. Partial first and last months are prorated by business day.

**3.4 Bonus statement.** With each monthly payment KESHAH will provide a statement listing each Qualifying Video, the platform(s) on which it qualified, and the bonus earned. Creator may request reasonable supporting analytics.

**3.5 Performance levels.** KESHAH may, at its discretion, offer Creator a higher retainer level based on performance. Any change to the retainer will be documented as described in Section 11.3.

**3.6 Payment method and taxes.** Payments will be made by a method of Creator’s choosing that KESHAH reasonably supports (such as ACH, PayPal, or Wise) to the account Creator designates in writing. Creator is responsible for all taxes on amounts paid under this Agreement and will provide a completed IRS Form W-9

(or W-8BEN if non-U.S.) before the first payment.

#### 4. Term and Termination

**4.1 Term.** This Agreement begins on the Effective Date with the Trial Period described in Section 3.1 and, unless ended at the close of the Trial Period, continues until the date three (3) months after the Effective Date (the “**Initial Term**”).

**4.2 Extension.** The Parties may extend this Agreement beyond the Initial Term for one or more additional periods by mutual written agreement (email confirmed by both Parties is sufficient). Unless extended, this Agreement expires automatically at the end of the Initial Term or the then-current extension period. The Initial Term together with any extension periods is the “**Term**.”

**4.3 Termination for convenience.** Either Party may terminate this Agreement for any reason on fourteen (14) days’ written notice (email is sufficient).

**4.4 Termination for cause.** Either Party may terminate immediately on written notice if the other Party materially breaches this Agreement and fails to cure within five (5) business days of notice.

**4.5 Effect of termination or expiration.** On termination or expiration, KESHAH will pay Creator the prorated retainer for Videos delivered through the end date, plus any bonuses earned on Videos posted before the end date whose 30-day measurement window ends afterward. Sections 5 through 10 survive termination or expiration.

#### 5. Intellectual Property

**5.1 Ownership of Videos.** All Videos, including all footage, audio, edits, and derivative works, are “works made for hire” for KESHAH to the fullest extent permitted by law. To the extent any Video is not a work made for hire, Creator hereby irrevocably assigns to KESHAH all right, title, and interest in and to the Videos, including all copyrights, throughout the world, upon delivery and payment.

**5.2 Name and likeness.** Creator grants KESHAH a worldwide, royalty-free, perpetual, irrevocable license to use Creator’s name, image, voice, and likeness as they appear in the Videos, for posting on the Accounts and for KESHAH’s marketing, advertising, and promotional purposes in any media, including paid advertising and use within the KESHAH app. KESHAH will not use Creator’s likeness in a manner that is defamatory or that materially misrepresents Creator’s views.

**5.3 KESHAH materials.** The Reference Material, KESHAH’s protocol, scripts, brand assets, and all information about KESHAH’s methods remain KESHAH’s sole property. Creator receives only a limited license to use them to perform the Services during the Term.

**5.4 Creator portfolio.** Creator may reference the engagement and display up to five (5) Videos in a personal portfolio or reel for the purpose of showcasing Creator’s work, provided the Videos are not altered and KESHAH is credited.

**5.5 Application video.** Any test video Creator submitted with Creator’s application was used only to evaluate the application. KESHAH will not post it publicly unless Creator agrees in writing.

## 6. Exclusivity

During the Term and for ninety (90) days after termination or expiration, Creator will not create or appear in sponsored or promotional content for any other hair loss, hair regrowth, scalp care, or hair supplement product or service without KESHAH's prior written consent. Nothing else in this Agreement restricts Creator from working with other brands.

## 7. Advertising Compliance

Both Parties will comply with the FTC Endorsement Guides and applicable advertising laws. Because KESHAH owns and posts to the Accounts, KESHAH is responsible for including any required paid-partnership or advertising disclosures on posts. Creator will not state or imply personal results or experiences with KESHAH that are not true, and will use only testimonial language KESHAH has approved.

## 8. Confidentiality

Creator will keep confidential all non-public information about KESHAH, including the Reference Material, the KESHAH protocol, content strategy, performance data, business metrics, compensation terms, and any information about KESHAH's members or customers, and will use such information only to perform the Services. This obligation continues for two (2) years after termination or expiration, and indefinitely for trade secrets.

## 9. Independent Contractor

Creator is an independent contractor, not an employee, partner, or agent of KESHAH. Creator controls the manner, means, and timing of producing the Videos, uses Creator's own equipment, and is not entitled to employee benefits. Use of the term "intern" or "internship" in the Program name or related materials does not create an employment relationship. Creator has no authority to bind KESHAH or make commitments on its behalf.

## 10. Representations, Indemnification, and Liability

**10.1 Creator representations.** Creator represents that (a) Creator is at least 18 years old; (b) Creator has the right to enter into this Agreement and grant the rights granted here; (c) the Videos will be Creator's original work and will not infringe any third party's rights; and (d) Creator will not use any music, footage, or material in the Videos that Creator is not licensed to use.

**10.2 KESHAH representations.** KESHAH represents that (a) it has the right to enter into this Agreement; and (b) the Reference Material and product claims it provides to Creator do not, to its knowledge, violate applicable law.

**10.3 Mutual indemnification.** Each Party will defend, indemnify, and hold harmless the other Party from third-party claims, damages, and reasonable attorneys' fees to the extent arising from that Party's breach of its representations in this Section 10 or its gross negligence or willful misconduct.

**10.4 Limitation of liability.** Except for breaches of Sections 5, 8, or 10, or a Party's gross negligence or willful misconduct, neither Party will be liable to the other for indirect, incidental, or consequential damages, and each Party's total liability under this Agreement will not exceed the total amounts paid or payable to Creator in the twelve (12) months before the claim arose.

## 11. General

**11.1 Governing law.** This Agreement is governed by the laws of the State of New York, without regard to its conflict-of-laws rules. Any dispute will be resolved in the state or federal courts located in New York County, New York, and each Party consents to that jurisdiction.

**11.2 Notices.** Notices may be given by email to the addresses below and are effective when sent, unless the sender receives a bounce or error message.

**11.3 Entire agreement; amendments.** This Agreement is the entire agreement between the Parties about its subject matter and replaces any prior discussions, including any messages exchanged before signing. It may be amended only in a writing signed by both Parties. Changes to the retainer amount, video volume, bonus terms, or Term extensions may be documented by an email confirmed by both Parties.

**11.4 Assignment.** Creator may not assign this Agreement without KESHAH's written consent. KESHAH may assign it to a successor or affiliate.

**11.5 Counterparts; e-signature.** This Agreement may be signed in counterparts and by electronic signature, each of which is an original.

Notice emails: KESHAH — [contact@keshah.com](mailto:contact@keshah.com); Creator — the email address provided in Creator's application or onboarding form.

IN WITNESS WHEREOF, the Parties have signed this Agreement as of the Effective Date.

**KESHAH, INC.**

**CREATOR**

Signature: \_\_\_\_\_

Signature: \_\_\_\_\_

Name: Aaditya Agrawal

Name: \_\_\_\_\_

Title: Founder & CEO

Address: \_\_\_\_\_

Date: \_\_\_\_\_

Date: \_\_\_\_\_